



CITY COUNCIL MEETING

Council Chambers

Thursday, December 15, 2022

MINUTES

1. Call to Order and Roll Call:

Mayor Brockett called the meeting to order at 6:03 p.m.

Council Members present: Benjamin, Brockett, Folkerts, Friend, Joseph, Speer, Wallach, Winer, and Yates

Present Virtually: Folkerts

- A. **National Homeless Persons' Memorial Day** Declaration to be presented by Council Member Rachel Friend
- B. Consideration of a motion to **approve the election returns from the 2022 Coordinated Special Municipal Election** held on November 8, 2022

Elesha Johnson, City Clerk, provided a presentation on the steps for this process.

Council Member Benjamin made a motion for the entire City Council to convene as the General Canvassing and Election Board. Council Member Friend seconded the motion. The motion was carried 9:0.

Elesha Johnson, City Clerk, took the official roll call of the General Canvassing and Election Board. All 9 members were present.

The oath was read aloud by the City Clerk to the board. All board members raised their right hand and provided a verbal “I do”.

Council Member Yates, nominated Mayor Brockett, to serve as the chair. Council Member Wallach seconded the motion. Motion carried 9:0.

The 2022 election returns were provided on the screen and read aloud to Council by the City Clerk.

Council member Winer made a motion to approve the election returns for the City of Boulder 2022 Coordinated Special Municipal Election held on November 8, 2022 and to adjourn the General Canvassing and Election Board and to reconvene as the Boulder City Council. Friend seconded the motion. The motion carried 9:0.

2. **Open Comment:**

(Public comments are a summary of actual testimony. Full testimony is available on the council web page at: <https://bouldercolorado.gov/city-council> > Watch Live or Archived Meetings.)

Open Comment **opened** at 6:15 p.m.

➤ **In-Person (Council Chambers):**

1. Ann Tsay spoke on land use and affordable housing
2. David Hsu spoke on land use and BVCP
3. Travis Culley spoke on Marshall Fire Learning
4. Evan Ravitz spoke on various
5. Susan Lythgoe spoke on BVSP Annexation
6. Alex Cassidy spoke on the 6500 Arapahoe Annexation
7. ~~Bill Platts~~ - ***moved to virtual***
8. Joe Prizio spoke on Modular Home Factory

➤ **Virtual**

1. —~~Kathy Pahler~~ - withdrew
2. Sammie Lawrence IV spoke on Zayds sacrifice
3. Chuck Hardesty spoke on the 6500 Arapahoe Annexation
4. Lynn Segal spoke on Catalytic converters
5. Jennifer Rhodes spoke on the police oversight panel
6. Eric Budd spoke on the police oversight panel
7. Carol McCasland spoke on the Sombrero Marsh Annexation
8. Bill Platts spoke on the Modular Factory at Sombrero Marsh

Open Comment **closed** at 6:49 p.m.

3. **Consent Agenda**

- A. Consideration of a motion to **accept** the **September 1, 2022 Regular Council** Meeting Minutes
- B. Consideration of a motion to **accept** the **September 15, 2022 Regular Council** Meeting Minutes
- C. Consideration of a motion to **accept** the **October 6, 2022 Regular Council** Meeting Minutes
- D. Consideration of a motion to **accept** the summary of the **November 10, 2022 Study Session Summary** regarding P&DS Council Priority Project Scheduling and Work Planning
- E. Consideration of a motion to **approve Selection Committee recommendations for members of the Police Oversight Panel**, as outlined in Title 2, Chapter 11, “Police Oversight,” B.R.C. 1981 pertaining to the composition, duties and powers of the City organization related to civilian oversight of the police, and setting forth related details

A motion was made and seconded to remove this item from the Consent Agenda and defer back to the selection committee for further review of

the application criteria and applicants. Item to be rescheduled for a later meeting.

- F. Introduction, **first reading**, and consideration of a motion to order published by title only **Ordinance 8565** amending Section 10-10-2, **“Adoption of the International Plumbing Code with Modifications,”** and Chapter 11-3, **“Industrial and Prohibited Discharges,”** B.R.C. 1981, to comport with state and federal laws; and setting forth related details
- G. Introduction, **first reading** and consideration of a motion to order published by title only and **adopt by emergency measure Ordinance 8566 adopting Supplement 153** which codifies previously adopted ordinances and Appendix Council Procedures as amendments to the Boulder Revised Code, 1981; and setting forth related details

Motion	Made By/Seconded	Vote
Motion to PASS consent agenda items A-G except item E with the direction to have a discussion immediately after on item E.	Yates / Winer	Carried 9:0

Aimee Kane, Equity Officer, answered questions from Council regarding item 3E.

Council member Friend made a motion to refer **item 3E** back to the selection committee for further review of the all applicants or all recommended panelist under code criteria that are required to be appointed and eligible for the panel with guidance from the City Attorney’s office and with explanations or certification explaining the steps that were taken in writing. Council member Wallach seconded the motion. The motion carried 9:0.

4. **Call-Up Check-In**

- A. **Landmark Alteration Certificate application** to add new storefront window openings, exterior patios, awnings, and paint at **1346 Pearl St**

NO ACTION

- B. **Three-year Extension of Development Approval for Site & Use Review application** nos. LUR2016-00051 and LUR2016-00052 for redevelopment of the site located at **4750 Independence Rd. (formerly addressed as 3365 Diagonal Hwy.)** with a 138 room, three-story, 35-foot tall, Holiday Inn Express hotel

NO ACTION

5. Public Hearings

- A. **Continued consideration** of the following items related to a **petition to annex a property** generally located at **6500 Arapahoe Road** with an initial zoning of Public (P) (LUR2021-00032):

(A) Annexation of Westerly Portion:

(1) Consideration of a motion to **adopt Resolution 1317 setting forth Findings of Fact and Conclusions** regarding the annexation of the westerly 19.097-acre portion of the property generally located at 6500 Arapahoe Road;

AND

(2) **Second reading** and consideration of a motion to adopt **Ordinance 8550 annexing to the City of Boulder the westerly 19.097-acre portion** of the property with an initial zoning classification of Public (P) as described in Chapter 9-5, "Modular Zone System," B.R.C. 1981; amending the Zoning District Map forming a part of said Chapter to include the property in the above-mentioned zoning district; and setting forth related details.

AND, IF ORDINANCE 8550 IS ADOPTED:

(B) Annexation of Easterly Portion:

(1) Consideration of a motion to **adopt Resolution 1322** setting forth Findings of Fact and Conclusions regarding the annexation of the easterly 28.882-acre portion of the property generally located at 6500 Arapahoe Road;

AND

(2) **Second reading** and consideration of a motion to adopt **Ordinance 8553 annexing to the City of Boulder the easterly 28.882-acre portion** of the property with an initial zoning classification of Public (P) as described in Chapter 9-5, “Modular Zone System,” B.R.C. 1981; amending the Zoning District Map forming a part of said Chapter to include the property in the above-mentioned zoning district; and setting forth related details.

AND, IF ORDINANCES 8550 AND 8553 ARE ADOPTED:

(C) Consideration of a motion to **approve an Intergovernmental Agreement (IGA)** between the **City of Boulder and Boulder Valley School District No. RE-2**, in substantially the same form as provided in the attachment to the staff memo for the **purpose of constructing an affordable housing modular factory** and authorize the city manager to execute such IGA and any and all additional documents and/or agreements necessary to affect this transaction.

The public hearing for this agenda item was closed.

Shabnam Bista, Senior Planner, provided a presentation and answered questions from Council.

Jay Sugnet, Housing Senior Manager, and Dan Burke, Director of Open Space and Mountain Parks answered questions from Council.

Motion	Made By/Seconded	Vote
Motion to declare that it is council’s desire that the City will mitigate potential impacts on neighboring properties and during the operation of the Affordable Housing Modular Factory and will: • strive to eliminate all traffic along 63rd street but ensure that factory	Brockett / Benjamin	Carried 9:0

deliveries on 63rd Street will in no case exceed 10 per month. • to the extent reasonably feasible, implement noise reduction recommendations by the acoustical engineer in the design and operation of the Factory. • work with the Open Space and Mountain Parks department to have ongoing enhanced monitoring of potential impacts on wildlife and water quality at Sombrero Marsh and, • have a check in on operations of the facility 1 year after commencement of operations that includes neighborhood outreach. This is contingent on approval of the annexation		
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Motion	Made By/Seconded	Vote
Motion to adopt Resolution 1317 setting forth Findings of Fact and Conclusions regarding the annexation of the westerly 19.097-acre portion of the property generally located at 6500 Arapahoe Road	Benjamin / Friend	Carried 9:0
Motion to adopt Ordinance 8550 annexing to the City of Boulder the westerly 19.097-acre portion of the property generally located at 6500 Arapahoe Road with an initial zoning classification of Public (P) as described in Chapter 9 5, “Modular Zone System,” B.R.C. 1981; amending the Zoning District Map forming a part	Benjamin / Winer	Carried 9:0

of said Chapter to include the property in the above-mentioned zoning district; and setting forth related details		
Motion to adopt Resolution 1322 setting forth Findings of Fact and Conclusions regarding the annexation of the easterly 28.882-acre portion of the property generally located at 6500 Arapahoe Road	Benjamin / Wallach	Carried 9:0
Motion to adopt Ordinance 8553 annexing to the City of Boulder the easterly 28.882-acre portion of the property generally located at 6500 Arapahoe Road with an initial zoning classification of Public (P) as described in Chapter-9-5, “Modular Zone System,” B.R.C. 1981; amending the Zoning District Map forming a part of said Chapter to include the property in the above-mentioned zoning district; and setting forth related details	Benjamin / Friend	Carried 9:0
Motion to approve an Intergovernmental Agreement (IGA) between the City of Boulder and Boulder Valley School District No. RE-2, in substantially the same form as provided in the attachment to the staff memo for the purpose of constructing an affordable housing modular factory and authorize the city manager to execute such IGA and any and all additional documents and/or agreements necessary to effect this transaction	Benjamin / Friend	Carried 9:0

- B. **Second reading** and consideration of a motion to adopt **Ordinance 8556, amending Title 9, “Land Use Code,”** B.R.C. 1981, to **update the use table and use standards** related to industrial uses and districts and setting forth related details

Brad Mueller, Planning and Development Director, introduced the item.

Lisa Houde, City Senior Planner and Karl Guiler, Senior Policy Advisor, provided a presentation and answered questions from Council.

The public hearing **opened** at 9:23 p.m. and the following spoke:

➤ **In-Person:**

1. David Ensign
2. Stephen Eckert
3. Jonathan Singer
4. Jennifer Rhodes

➤ **Virtual:**

1. Lynn Segal
2. Kelsey Hunter
3. ~~Jennifer Rhodes~~ – ***moved to in-person***
4. Rosie Fivian
5. Marc Painter
6. Jordan Bunch

The public hearing **closed** at 9:50 p.m.

Hella Pannewig, Senior Attorney, and answered questions from Council.

Brad Mueller, Planning and Development Director answered questions from Council.

Motion	Made By/Seconded	Vote
Motion to CONTINUE Ordinance 8556, amending Title 9, “Land Use Code,” B.R.C. 1981, to update the use table and use standards related to industrial uses and districts to the January 19th meeting.	Brockett / Friend	Carried 9:0

6. **Matters from the City Manager**

7. **Matters from the City Attorney**

8. **Matters from the Mayor and Members of Council**

A. Check-in on **Council Committee Assignments**

Mayor Brockett proposed that Council Members indicate changes they wish to be made to the current assignments.

Teresa Taylor Tate clarified that there is no term limit on Council Committees.

B. Discussion on **Potential Selection Criteria for the Library District Board of Trustee Selection Committee**

Council Member Benjamin outlined the reason for bringing this item forward and offered proposed criteria.

9. **Discussion Items**

Council Member Friend wanted to bring forth the issue of speakers not speaking at the appropriate time on the agenda and possibly adding the Police Oversight Panel amendments to the Council workplan.

She also noted that speakers are mentioning issues with HOTLINE.

Nuria Rivera-Vandermyde, City Manager addressed Council on the status of Council Member Friend’s concerns.

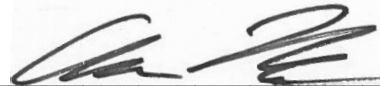
10. **Debrief**

11. **Adjournment**

There being no further business to come before Council at this time, by motion regularly adopted, the meeting was **adjourned by Mayor Brockett at 10:49 p.m.**

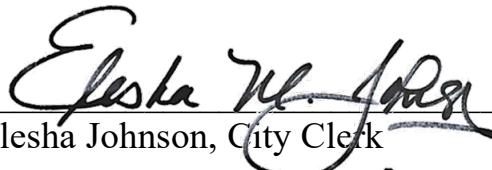
Approved this 16th day of February 2023.

APPROVED BY:



Aaron Brockett, Mayor

ATTEST:



Elesha Johnson, City Clerk

